

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Thomas J. Lo

Department C44

Hearing Date and Time: August 6, 2026 @ 8:30 AM

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5244. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.).

Appearances: Department C44 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C44 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5244 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	All Green Electronics Recycling, LLC vs. Funding Metrics, LLC 2026-01539367	<i>[The court will address with the parties the duplicative case filing, All Green Electronics Recycling, LLC v. Funding Metrics, LLC dba Lendini, Case No. 30-2026-01539489, which is currently assigned to the Honorable Judge Theodore Howard.</i> <i>With respect to Defendant Funding Metrics, LLC's pending demurrer in this case, 01539367, this court has also considered Plaintiff's Opposition to Defendant's demurrer (ROA 22) and Plaintiff's supporting declaration (ROA 20) which were both filed in case 01539489 only. The court has also considered the First Amended Complaint which is the subject of this demurrer but was only filed in case 01539489.]</i> Demurrer to Amended Complaint Defendant Funding Metrics, LLC's demurrer to Plaintiff All Green Electronics Recycling LLC's First Amended Complaint is SUSTAINED. (Code Civ. Proc., §430.10, subd. (e).) Plaintiff shall have 20 days to file a Second Amended Complaint to address the deficiencies outlined below. Defendant argues that Plaintiff's negligence and declaratory relief claims are barred by the two-year statute of limitations provided in Code Civ. Proc. §339, subd. (1). Defendant argues that the FAC discloses that Plaintiff's claim accrued more than 2 years prior to the commencement of this action. Namely, Defendant cites to FAC ¶9, where Plaintiff admits that "between approximately May of 2022 and August of 2025, Lendini withdrew funds totaling \$1,096,952 from its bank account without authorization." Defendant reasons that Plaintiff's cause of action accrued when the first withdrawal was made from Plaintiff's account and that Plaintiff should have suspected wrongdoing once the first withdrawal was made. Plaintiff does not dispute that a 2-year statute of limitations applies to the claims alleged here. Rather, Plaintiff argues that the FAC alleges Plaintiff did not discover the wrongdoing until August 2025, when an unlawful detainer proceeding was commenced against Plaintiff, triggering Plaintiff to conduct an audit of its accounts. Plaintiff relies upon the discovery rule to preserve the timeliness of its claims. To sufficiently plead the applicability of the discovery rule, Plaintiff must allege with specificity "(1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence." (<i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 808.) Plaintiff attempts to invoke the

		discovery rule in the FAC, but the FAC fails to allege sufficient facts with sufficient particularity to warrant application of the discovery rule. Specifically, Plaintiff alleges, in purely conclusory terms, that it could not have discovered Defendant's wrongdoing prior to August 2025 because the transactions were mistaken as being "regular operational expenses and not as repayments for the advanced funds." (FAC ¶29.) Accordingly, the negligence cause of action is subject to demurrer as untimely. Plaintiff's Second Cause of Action is subject to the same statute of limitations as its negligence claim. (See <i>Bank of New York Mellon v. Citibank NA</i> (2017) 8 Cal.App.5th 935, 943-944 ["A claim for declaratory relief is subject to the same statute of limitations as the legal or equitable claim on which it is based."].) Accordingly, Plaintiff's Second Cause of Action is subject to demurrer on the same grounds discussed above. Plaintiff has leave to file a Second Amended Complaint that either alleges specific facts to warrant application of the discovery rule or to otherwise allege a cause of action that is not barred by the statute of limitations. Motion to Strike Portions of Complaint In light of the foregoing ruling on the demurrer, Defendant's Motion to Strike is DENIED as MOOT. <i>Case Management Conference continued to January 15, 2027 at 8:30 a.m. in Department C44.</i> Defendant to give notice.
2	Axiom Heat Treatment LLC vs. Upton 2026-01539877	1. Demurrer to Complaint 2. Motion to Strike Portions Of Complaint 3. Case Management Conference <i>All matters continued to 10/29/26.</i>
3	California Bank of Commerce, N.A. vs. JKO Group, LLC 2026-01540180	Demurrer to Complaint <i>Vacated. See notice filed 7/17/26.</i>

4	Cerni vs. Karen A. Sunday & Associates, Inc. 2026-01561774	Motion to Strike – Anti SLAPP <i>Matter continued to 11/12/26.</i>
5	Estrada vs. General Motors LLC 2024-01447483	Motion for Attorney Fees Plaintiff Jesus Estrada’s motion for attorney fees and costs is GRANTED in part and DENIED in part. (Code Civ. Proc., §§ 1032, subd. (b) [prevailing party entitlement to costs generally], 1033.5, subd. (a)(10)(B) [recoverable costs may include attorney fees pursuant to statute]; Civ. Code, § 1794, subd. (d) [prevailing party in Song-Beverly action entitled to reasonable fees/costs].) Plaintiffs is awarded attorney fees in the amount of \$15,807.80, which the court finds were reasonably and necessarily incurred. The court finds that the hourly rates claimed by moving party’s attorneys are reasonable and commensurate with market rates in the Orange County area for comparable work. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095 [reasonable hourly rate “is that prevailing in the community for similar work”]; <i>Syers Properties III, Inc. v. Rankin</i> (2014) 226 Cal.App.4th 691, 700 [“determination of the ‘market rate’ is generally based on the rates prevalent in the community where the court is located”].) The court has also somewhat reduced the time claimed by moving party’s attorneys for tasks that appear clerical and/or administrative in nature, entries related to different client, time spent on discovery, and for anticipated time in connection with the instant motion, which appear somewhat excessive. (See <i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095 [court’s broad authority to determine reasonable fees]; <i>Serrano v. Unruh</i> (1982) 32 Cal.3d 621, 635, FN 21 [clerical tasks should generally be considered overhead and included in counsel’s hourly rate]; <i>Save Our Uniquely Rural Community Environment v. County of San Bernardino</i> (2015) 235 Cal.App.4th 1179, 1187 [trial court did not abuse discretion in reducing fees billed at partner rates for “researching and calendaring all deadlines”].) Otherwise, after review of moving parties’ billing records (Ex. A to motion), the court finds the remaining billing entries and time claimed to be reasonably and necessarily incurred. Moving party’s request for a multiplier is DENIED. This is a routine lemon law case, with no unusual facts or novel legal issues requiring exceptional skill. Further, the only evidence provided as to multiplier factors is contingency (Acosta Decl., ¶¶ 11-12); there

		is no evidence as to other multiplier factors. (<i>Mikhaeilpoor v. BMW of North America, LLC</i> (2020) 48 Cal.App.5th 240, 248, citing <i>Press v. Lucky Stores, Inc.</i> (1983) 34 Cal.3d 311, 322, fn. 12 [aside from contingency, other multiplier factors include “the novelty and difficulty of the questions involved, and the skill displayed in presenting them,” and “the extent to which the nature of the litigation precluded other employment by the attorneys”]; see also <i>Weeks v. Baker & McKenzie</i> (1998) 63 Cal.App.4th 1128, 1174-1175 [availability of statutory fee recovery reduces risks associated with contingency].) As to the request for costs, the motion is DENIED. Moving party has already filed a Memorandum of Costs (Ex. B to motion; ROA 50), and no motion to tax was filed. Moving party provides no evidence of costs incurred other than those included in the Memorandum of Costs. (See <i>Smalley v. Subaru of America, Inc.</i> (2022) 87 Cal.App.5th 450, 457 [“In a claim under the Song-Beverly Act ... for purposes of that statute, expenses encompasses out-of-pocket expenses beyond the costs identified in Code of Civil Procedure section 1033.5;” other internal citations omitted.] To award the same costs for the instant motion as listed in the Memorandum of Costs, would be a double recovery. Moving party shall give notice.
6	Nikova vs. Mercedes-Benz USA LLC 2026-01569577	Motion to Compel Arbitration Defendant Mercedes-Benz USA LLC’s motion to compel arbitration is GRANTED. (9 U.S.C, § 2 [authorizing motion]; <i>Victrola 89, LLC v. Jaman Properties 8 LLC</i> (2020) 46 Cal.App.5th 337, 345-346 [Federal Arbitration Act (FAA) governs where arbitration clause states it applies]; <i>Maxwell v. Atria Management Co., LLC</i> (2024) 105 Cal.App.5th 230, 249 [“the procedural aspects of the FAA do not apply in state court absent an express provision in the arbitration agreement;” not present here]; <i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 407–408 [even where the FAA substantively applies, it “does not explicitly govern the procedures to be used in state courts,” and thus the procedural rules set forth in the California Arbitration Act (CAA) apply]; Code Civ. Proc., § 1281.2 [authorizing motion to compel arbitration].) Moving party has met its initial burden of presenting evidence of an executed arbitration agreement requiring arbitration of plaintiff’s claims in this action. (<i>Rosenthal v. Great Western Fin. Securities Corp.</i>, <i>supra</i> at 413 [moving party’s initial burden to

	present evidence of arbitration agreement]; <i>Jones v. Jacobson</i> (2011) 195 Cal.App.4th 1, 15 [nonsignatory bears burden to establish standing to enforce agreement]; <i>LaBarbera v. Security National Ins. Co.</i> (2022) 86 Cal.App.5th 1329, 1340-1341 [third party beneficiary]; Chen Decl., Ex. 1, pp. 4-5 [requiring arbitration of “[a]ny claim or dispute, whether in contract, tort or otherwise ... between you and us or any of our employees, agents, successors, assigns, or the vehicle distributor, <u>including Mercedes-Benz USA LLC (each a “Third Party Beneficiary”), which arises out of or relates to a credit application, this lease, or any resulting transaction or relationship arising out of this lease (including any such relationship with third parties who do not sign this contract);”</u> emphasis added].) Plaintiff has not shown grounds to deny enforcement. The arbitration provision is broadly worded and encompasses the claims alleged here. (<i>Rice v. Downs</i> (2016) 248 Cal.App.4th 175, 186–187 [broadly worded arbitration provision encompasses claims which “have their roots in the relationship between the parties which was created by the contract”].) Plaintiff also fails to show that arbitration should be denied on unconscionability grounds. (<i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 114 [“<i>Armendariz</i>”] [both procedural and substantive unconscionability must be present in order for a court to exercise its discretion to refuse to enforce a contract under the doctrine of unconscionability].) Some procedural unconscionability is present, as the arbitration rules were not provided. (<i>Carbajal v. CWPSC, Inc.</i> (2016) 245 Cal.App.4th 227, 244–245 [collecting cases and noting that “the failure to provide a copy of the governing rules ‘contributes to oppression because the employee ‘is forced to go to another source to find out the full import of what he or she is about to sign and must go to that effort prior to signing;’” citations omitted]; but see <i>Bigler v. Harker School</i> (2013) 213 Cal.App.4th 727, 737 [“the absence of the AAA rules is of minor significance to our analysis”].) Plaintiff fails to show substantive unconscionability, which is also required. (<i>Armendariz, supra</i> at 114.) Rather, plaintiff’s Opposition merely restates her procedural unconscionability arguments in this regard, which alone are insufficient. (<i>Id.</i>) Plaintiff Iliana Nikova is ordered to arbitrate her claims in this action against moving party, pursuant to the arbitration provision
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		in the Consumer Lease Agreement. This action is stayed pending completion of arbitration. (Code Civ. Proc., § 1281.4.) An Alternative Dispute Resolution (ADR) review hearing is scheduled for <i>March 12, 2027 at 8:30 a.m. in Department C44.</i> <i>The Case Management Conference set October 16, 2026 is vacated.</i> Moving party shall give notice.
7	Piper vs. Smith 2025-01518710	Motion to Quash Service of Summons Defendants Frances Marie Smith and Transforming Live Counseling LLC's motion for order quashing service of summons and to dismiss Defendants from this action pursuant to Code of Civil Procedure §§ 418.10(a)(1) and 581 (h) is denied on procedural grounds. The motion is untimely. It is undisputed defendants were served with the summons and complaint on October 25, 2025. (See ROAs 14 and 16.) As such, the time to respond expired November 24, 2025. This motion was not filed until February 10, 2026. Defendants provided no explanation for this delay and did not obtain a stipulation from plaintiff to waive the time requirement. Defendant Smith to give notice. Motion for Leave to File Special Motion to Strike (ROA 37) Defendants Frances Marie Smith and Transforming Live Counseling LLC's motion for leave to file an anti-SLAPP motion beyond the 60 day statutory time period is GRANTED. The facts demonstrate that the claim may be barred by the litigation privilege and an early determination of that issue is in the parties' (and the court's) best interest. Further, the delay in filing the motion was not significant. Smith filed it shortly after she retained counsel. There is no demonstrable prejudice to Piper in hearing the motion now. Defendant Smith to give notice. Motion to Strike - Anti SLAPP (ROA 38) Defendants Frances Marie Smith and Transforming Live Counseling LLC's special motion to strike is DENIED. Even if

		the allegations of the complaint were made in connection with ongoing litigation, the alleged conduct is not protected by the litigation privilege of Civil Code section 47. The protections of Civil Code section 47, subdivision (b)(1) contain an important exception: allegations or averments in <i>marital dissolution or legal separation</i> actions made of or concerning a person by or against whom no affirmative relief is prayed are <u>not</u> privileged unless certain conditions are met. (Civ. Code, § 47, subd. (b)(1).) This means that although defendants' services may have been retained for the custody battle, Smith was not a party to the dissolution action and no affirmative relief is sought by or against her in the custody action. Therefore, the litigation privilege does not apply. The anti-SLAPP motion fails at step two because the Plaintiff Piper has demonstrated a probability of prevailing. (<i>L.G. v. M.B.</i> (2018) 25 Cal.App.5th 211.) <i>Case Management Conference continued to January 15, 2027 at 8:30 a.m. in Department C44.</i> Defendant Smith to give notice.
8	Pope vs. Manzo 2025-01470823	Motion for Separate Judgment Plaintiff Michael Pope's motion for a separate judgment against defendant Ikonic Investments, LLC is GRANTED. Plaintiff is to file a default packet per Code of Civil Procedure section 585 as to Defendant Ikonic Investments, LLC. The OSC re: Dismissal as to Defendant Ikonic Investments, LLC is continued to <i>January 15, 2027 at 8:30 a.m. in Department C44.</i> The OSC re: Dismissal as to Defendant Elizabeth Manzo for Failure to Serve is <i>vacated</i>, as a proof of service by publication for this defendant was filed on 7/7/26 (ROA 45). Plaintiff to give notice.
9	Santa Ana Police Officers Association vs. City of Santa Ana 2021-01230129	Motion to Consolidate The motion for consolidation filed and agreed to by all parties is granted. The Court finds the cases have common issues of law and fact. The Court orders a complete consolidation. OCSC Case No. 30-2021-01230129-CU-OE-CJC ("Serrano I") is the lead case. All future filings for OCSC Case No. 30-2023-

		01330782 (“Serrano II”) shall be filed in the lead case. All filings must comply with California Rule of Court Rule 3.350(d). Plaintiff Gerry Serrano is ordered to file a notice including a copy of this ruling in OCSC 2023-01330782 within 5 court days and to file and serve notice that this has been done in this case. Gerry Serrano shall give notice of the Court’s ruling on this Motion.
10	Whitewolf vs. Beachwalk Homeowners Association 2023-01346511	Motion for Determination of Good Faith Settlement <i>Matter continued to 8/13/26.</i>